

# HOUSE . . . . . No. 269

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## The Commonwealth of Massachusetts

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PRESENTED BY:

***Joan Meschino***

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*To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:*

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act strengthening parenting time plans.

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PETITION OF:

| NAME:                | DISTRICT/ADDRESS:   | DATE ADDED:     |
|----------------------|---------------------|-----------------|
| <i>Joan Meschino</i> | <i>3rd Plymouth</i> | <i>1/8/2025</i> |

# HOUSE . . . . . No. 269

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By Representative Meschino of Hull, a petition (accompanied by bill, House, No. 269) of Joan Meschino relative to parenting time plans for certain foster children. Children, Families and Persons with Disabilities.

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[SIMILAR MATTER FILED IN PREVIOUS SESSION  
SEE HOUSE, NO. 3777 OF 2021-2022.]

## The Commonwealth of Massachusetts

\_\_\_\_\_  
In the One Hundred and Ninety-Fourth General Court  
(2025-2026)  
\_\_\_\_\_

An Act strengthening parenting time plans.

*Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:*

1           Chapter 119 of the General Laws is hereby amended by inserting after section 26C the  
2 following section:-

3           Section 26D. (a) Whenever a court transfers temporary custody or responsibility of a  
4 child to the department, to a licensed child care agency or to an individual as described in clause  
5 (i) of paragraph (2) of subsection (b) of section 26, the court shall order regular and frequent  
6 visitation between the parent and child unless the court finds that such visitation would be  
7 harmful to the child's health or safety. The court may review and modify any such order or  
8 finding at any time thereafter upon the motion of any party for good cause shown.

9 (b) An order entered pursuant to subsection (a) shall specify the frequency, duration and  
10 other terms of parent-child visitation, including the extent to which the visitation shall be  
11 supervised or unsupervised. In setting the terms of the visitation, the court shall consider the  
12 child's age, developmental stage and any other needs of the child.

13 (c) There shall be a rebuttable presumption that parent-child visitation will be  
14 unsupervised. The court may require that all visitation be supervised only upon a finding that  
15 unsupervised visitation would endanger the safety or well-being of the child.

16 (d) (i) Regular and frequent parent-child visitation shall not be less than once every week  
17 and shall include at least 2 hours of visitation per week unless the court determines that such  
18 visitation would be harmful to the safety or well-being of the child.

19 (ii) The court may not suspend parent-child visitation for more than 4 weeks or terminate  
20 parent-child visitation unless it finds, by clear and convincing evidence, that parent-child  
21 visitation would harm the safety or well-being of the child.

22 (e) The court may issue orders for communication between the parent and child,  
23 including telephone calls, video calls, electronic mail, text messaging or regular mail. When  
24 issuing such orders, the court shall consider the child's age, developmental stage and any other  
25 needs of the child.